

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action Number: 1:19-cv-01749-RMR-SKC

TITAN MANUFACTURING SOLUTIONS, INC.,

Plaintiff/Counterclaim Defendant,

v.

NATIONAL COST, INC., D/B/A NATIONAL TAX GROUP,

Defendant/Counterclaim Plaintiff.

SPECIAL VERDICT FORM

Before you return the Special Verdict answering these questions, you must all agree on the answers to each of the questions. Upon arriving at such agreement, your foreperson will insert each answer in the verdict and then he or she and all other jurors will sign it upon completion of all answers.

TITAN'S CLAIMS

1. Did Titan prove by a preponderance of evidence that National Tax entered into a valid license agreement for Titan Armor?

☒ Yes ☐ No

IF YOU ANSWERED "NO" TO QUESTION NO. 1, SKIP TO QUESTION 6

IF YOU ANSWERED "YES" TO QUESTION NO. 1, PROCEED TO QUESTION NO. 2

2. Did Titan prevail on its breach of contract claim against National Tax?

☒ Yes ☐ No

IF YOU ANSWERED "NO" TO QUESTION NO. 2, SKIP QUESTION NO. 4

IF YOU ANSWERED "YES" TO QUESTION NO. 2, PROCEED TO QUESTION NO. 3

3. What were Titan's damages caused by National Tax's breach of contract?

\$ 1,027,500

4. Did Titan prevail on its claim of Breach of the Implied Duty of Good Faith and Fair Dealing against National Tax?

☒ Yes ☐ No

IF YOU ANSWERED "NO" TO QUESTION NO. 4, SKIP QUESTION NO. 6

IF YOU ANSWERED "YES" TO QUESTION NO. 4, PROCEED TO QUESTION NO. 5

5. What were Titan's damages caused by National Tax's breach of the implied duty of good faith?

\$ 10,000

IF YOU ANSWERED "YES" TO QUESTION NO. 1, PROCEED TO QUESTION NO. 8

6. Did Titan prevail on its claim for Unjust Enrichment against National Tax?

☐ Yes ☐ No

IF YOU ANSWER "NO" TO QUESTION NO. 6, PROCEED TO QUESTION NO. 8

IF YOU ANSWER "YES" TO QUESTION NO. 6, PROCEED TO QUESTION NO. 7

7. What were Titan's damages as a result of National Tax's unjust enrichment?

\$ _____

NATIONAL TAX'S COUNTERCLAIMS

8. Did National Tax prevail on its claim for Misappropriation of Trade Secrets against Titan?

☐ Yes ☒ No

IF YOU ANSWER "NO" TO QUESTION NO. 8, PROCEED TO QUESTION NO. 12

IF YOU ANSWER "YES" TO QUESTION NO. 8, PROCEED TO QUESTION NO. 9

9. What were National Tax's actual damages as a result of Titan's misappropriation?

\$ _____

10. If you answered "yes" to Question No. 8, do you find that Titan's misappropriation was willful and malicious, resulting from conscious disregard of National Tax's rights?

☐ Yes ☐ No

IF YOU ANSWER "NO" TO QUESTION NO. 10, PROCEED TO QUESTION NO. 12

IF YOU ANSWER "YES" TO QUESTION NO. 10, PROCEED TO QUESTION NO. 11

11. State the dollar amount of any exemplary damages you award.

\$ _____

12. Did National Tax prevail on its claim for Intentional Interference with Contractual Obligations against Titan?

___ Yes ☒ No

IF YOU ANSWERED "NO" TO QUESTION NO. 12, PROCEED TO QUESTION NO. 14

IF YOU ANSWERED "YES" TO QUESTION NO. 12, PROCEED TO QUESTION NO. 13

13. What were National Tax's damages caused by Titan's interference with contract?

\$ _____

14. Did National Tax prevail on its claim of Interference with Prospective Business Advantage against Titan?

___ Yes ☒ No

IF YOU ANSWERED "NO" TO QUESTION NO. 14, SKIP QUESTION NO. 16

IF YOU ANSWERED "YES" TO QUESTION NO. 14, PROCEED TO QUESTION NO. 15

15. What were National Tax's damages caused by Titan's interference with business advantage?

\$ _____

16. Did National Tax prevail on its Unjust Enrichment claim against Titan?

☒ Yes ___ No

IF YOU ANSWERED "NO" TO QUESTION NO. 16, SKIP TO END

IF YOU ANSWERED "YES" TO QUESTION NO. 16, PROCEED TO QUESTION NO. 17

17. What were National Tax's damages as a result of Titan's unjust enrichment?

\$ 1_____

Signatures of the jury:

